

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

OREN LEVY,

Plaintiff,

-against-

CITY OF NEW YORK; Inspector
ROBERT W. OHARE, Tax ID No.
916960; Police Officer JUAN C.
DELSALTO, Shield No. 15080; and JOHN
and JANE DOE 1-10,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates New York County as
place of venue

SUMMONS

The basis of the venue is:

Situs of the Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: May 3, 2023

New York, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK

By: 

Gabriel P. Harvis, Esq.,

*Attorneys for the Plaintiff*80 Pine Street, 38th Floor

New York, New York 10005

(212) 532-1116

Defendants:**CITY OF NEW YORK**

100 Church Street

New York, New York 10007

Insp. ROBERT W. OHARE, Tax ID No. 916960

Qad Standards & Asmt Sec

300 Gold Street, 2nd Floor

Brooklyn, New York 11201

(718) 330-4431

(Process server: please see PO at reception and explain you need to serve the Inspector on 2nd Floor)

PO JUAN C. DELSALTO, Shield No. 15080

Patrol Boro Manhattan South

C/O Midtown South Precinct

357 W 35th St

New York, NY 10001

Failure to respond will result in a judgment against you by default and interest from February 7, 2022.

SUPREME COURT OF THE STATE OF NEW YORK
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VERIFIED COMPLAINT

Plaintiff OREN LEVY, by his attorneys, ELEFTERAKIS, ELEFTERAKIS &
PANEK, complaining of the Defendants, respectfully alleges:

JURISDICTION

1. This action falls within one or more of the exemptions set forth in CPLR § 1602.
2. The action arises under the laws of the State of New York.
3. Jurisdiction is conferred by the laws of the State of New York.
4. On or about May 7, 2022, and within ninety (90) days after the claim arose, Plaintiff served, presented, and duly filed a Notice of Claim, in writing, upon Defendants in accordance with General Municipal Law 50-e, and which set forth the following:
 - a. the nature of the claim;
 - b. the time when, place where, and manner in which the claim arose; and
 - c. the items of damages and injuries sustained.

5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claim, and Defendants have neglected and/or refused to make an adjustment and/or payment on Plaintiff's claim.

6. Pursuant to G.M.L. § 50-h, the City of New York examined Plaintiff Oren Levy on or about July 18, 2022.

7. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

PARTIES

8. Plaintiff is a resident of the State of New York.

9. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

10. The individual Defendants were, at all relevant times, employees of the NYPD. In their interactions with Plaintiff these Defendants were acting in the capacity of agent, servant and employee of Defendant City of New York and within the scope of their

employment and under color of state law. These Defendants are sued in their individual capacity.

11. John and Jane Doe 1-10 are Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived Plaintiff of his rights. John and Jane Doe 1-10 are sued in their individual capacities and as employees of Defendant City.

12. At all times here mentioned, the individual Defendants were acting under color of state law.

STATEMENT OF FACTS

13. At or about 5:00 p.m. on February 7, 2022, Plaintiff Oren Levy, a credentialed member of the press and noted freelance journalist, was lawfully present inside the AMC theater at 234 West 42nd Street in midtown Manhattan documenting activists who had paid to enter the theater but declined to wear masks.

14. Plaintiff, who was masked and displaying valid press credentials, was seated in the theater with another journalist apart from the activists when police officers arrived and spoke to the activists.

15. Consistent with the law, the unidentified first responding officers gave Plaintiff and the journalist with whom he was sitting express permission to remain and document the activists' civil disobedience and police response.

16. Thereafter, the NYPD Strategic Response Group arrived, and, at the apparent direction of Defendant OHare, unlawfully placed Plaintiff under arrest for trespass in the absence

of probable cause and in violation of Plaintiff's rights under the First, Fourth and Fourteenth amendments, as well as state law, including Section 79-P of the New York State Civil Rights law.

17. Defendants placed excessively tight handcuffs on Plaintiff's wrists, which Defendants refused to loosen despite Plaintiff's requests.

18. Still in overly tightened handcuffs and in pain and discomfort, Plaintiff was taken by paddywagon to a precinct, resulting in injury to Plaintiff's body, including his back, neck and shoulders.

19. After being held at the precinct for several hours, Plaintiff was issued a desk appearance ticket ("DAT") and released.

20. As a result of Plaintiff's false arrest, he was publicly shamed and ridiculed as an anti-vaccine fanatic, and his image, name and likeness were defamed and sullied.

21. The DAT was subsequently dismissed.

22. Such conduct by Defendants constituted, inter alia, negligence, assault and battery, recklessness, false arrest, malicious abuse of process, malicious prosecution, fabrication of evidence, first amendment retaliation, defamation, slander and intentional and negligent infliction of emotional distress.

23. The Defendants were also negligent, grossly negligent, acted with deliberate indifference and violated, inter alia, Civil Rights Law 28 and 79-P and § 14-189 of the New York City Administrative Code, the New York State Constitution and Plaintiff's civil, constitutional and common law rights.

24. Defendants negligently and intentionally inflicted emotional distress on Plaintiff.

25. The City of New York negligently hired, retained, trained and supervised the O'Hare, Delsalto and the unidentified Defendants responsible for Plaintiff's injuries and is responsible for their conduct under respondeat superior.

26. As a result of the foregoing, Plaintiff suffered, *inter alia*, emotional distress, mental anguish, fear, pain, physical injury, anxiety, embarrassment, and humiliation.

FIRST CLAIM
Unlawful Stop and Search

27. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

28. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiff without reasonable suspicion.

29. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein before alleged.

SECOND CLAIM
False Arrest

30. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

31. Defendants violated the Fourth and Fourteenth Amendments because they arrested Plaintiff without probable cause.

32. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM

State Law False Imprisonment and False Arrest

33. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

34. By their conduct, as described herein, the individual Defendants are liable to Plaintiff for falsely imprisoning and falsely arresting Plaintiff.

35. Plaintiff was conscious of his confinement.

36. Plaintiff did not consent to his confinement.

37. Plaintiff's confinement was not otherwise privileged.

38. Defendant City of New York, as an employer of the individual Defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

39. As a direct and proximate result of the misconduct and abuse of authority stated above, Plaintiff sustained the damages alleged herein.

FOURTH CLAIM

Malicious Prosecution

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. By their conduct, as described herein, and acting under color of state law, Defendants are liable to Plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

42. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive Plaintiff of his constitutional rights. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for the Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.

43. As a direct and proximate result of the misconduct and abuse of authority stated above, Plaintiff sustained the damages alleged herein.

FIFTH CLAIM
State Law Malicious Prosecution

44. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

45. By their conduct, as described herein, Defendants are liable to Plaintiff for having committed malicious prosecution under the laws of the State of New York.

46. Defendants maliciously commenced criminal proceeding against Plaintiff, charging him with trespass. Defendants falsely and without probable cause charged Plaintiff with violations of the laws of the State of New York.

47. The commencement and continuation of the criminal proceedings against Plaintiff was malicious and without probable cause.

48. All charges were terminated in Plaintiff's favor.

49. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of Plaintiff. Defendant City of New York, as an employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

50. As a direct and proximate result of the misconduct and abuse of authority stated above, Plaintiff sustained the damages alleged herein.

SIXTH CLAIM
Unreasonable Force

51. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

52. The Defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on Plaintiff.

53. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CLAIM
State Law Assault and Battery

54. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

55. By their conduct, as described herein, the Defendants are liable to Plaintiff for having assaulted and battered him.

56. Defendant City of New York, as an employer of the individual Defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a direct and proximate result of the misconduct and abuse of authority stated above, Plaintiff sustained the damages alleged herein.

EIGHTH CLAIM
Denial of Constitutional Right to Fair Trial

58. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

59. The individual Defendants created false evidence against Plaintiff.

60. The individual Defendants forwarded false evidence to prosecutors in the New York County District Attorney's office.

61. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual Defendants violated Plaintiff's right to a fair trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.

62. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CLAIM
Malicious Abuse of Process

63. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

64. The individual Defendants issued legal process to place Plaintiff under arrest.

65. The individual Defendants arrested Plaintiff in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to retaliate against Plaintiff for engaging in First-Amendment protected speech.

66. The individual Defendants acted with intent to do harm to Plaintiff without excuse or justification.

67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CLAIM

Negligent Hiring/Training/Retention

68. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

69. Defendant City, through the NYPD, owed a duty of care to Plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to Plaintiff or to those in a like situation would probably result from the foregoing conduct.

70. Upon information and belief, all of the individual Defendants were unfit and incompetent for their positions.

71. Upon information and belief, Defendant City knew or should have known through the exercise of reasonable diligence that the individual Defendants were potentially dangerous.

72. Upon information and belief, Defendant City's negligence in screening, hiring, training, disciplining, and retaining these Defendants proximately caused each of Plaintiff's injuries.

73. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CLAIM
First Amendment Retaliation

74. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

75. By their conduct, as described herein, and acting under color of state law to deprive the Plaintiff of his right to freedom of speech under the First and Fourteenth Amendments, the individual Defendants are liable for violation of 42 U.S.C. § 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution. The individual Defendants have violated Plaintiff's First Amendment rights to speech by unlawfully denying his right to speak freely by subjecting him to false arrest and excessive force to deter the exercise of his First Amendment rights. Defendants' actions were taken in retaliation for Plaintiff's exercising his First Amendment rights.

76. As a consequence of the individual Defendants' actions, Plaintiff has suffered violations of his First and Fourteenth Amendment rights to free speech. Plaintiff has fear and apprehension that he will, again, be subject to similar unlawful acts by Defendants done for the purpose of limiting and preventing his First Amendment-protected activities.

77. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CLAIM

Intentional Infliction of Emotional Distress

78. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

79. By reason of the foregoing, the Defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each committed conduct so extreme and outrageous as to constitute the intentional infliction of emotional distress upon Plaintiff.

80. The intentional infliction of emotional distress by these Defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

81. Defendants, their officers, agents, servants, and employees were responsible for the intentional infliction of emotional distress upon Plaintiff. Defendant City, as employer of each of the Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

82. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CLAIM**Negligent Infliction of Emotional Distress**

83. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

84. By reason of the foregoing, the Defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent in committing conduct that inflicted emotional distress upon Plaintiff.

85. The negligent infliction of emotional distress by these Defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

86. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon Plaintiff. Defendant City, as employer of each of the Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

87. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CLAIM**Deliberate Indifference to Safety/Medical Needs**

88. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

89. The individual Defendants were aware of a risk to Plaintiff's safety and a need for medical care and failed to act in deliberate indifference to Plaintiff's needs.

90. Accordingly, Defendants violated the Fourteenth Amendment because they acted with deliberate indifference to Plaintiff's medical needs and safety.

91. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CLAIM

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

92. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

93. The acts of the individual Defendants constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

94. The acts of the individual Defendants caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

95. The individual Defendants, while in uniform, unlawfully seized Plaintiff.

96. By reason of the acts and omissions by the individual Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CLAIM

Individual Defendant Officers' Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

97. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

98. The acts of the individual Defendants constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

99. The individual Defendants had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

100. The individual Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

101. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

102. By reason of the acts and omissions by the individual Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

SEVENTEENTH CLAIM

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

103. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

104. The individual Defendants are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

105. The City of New York, as the employer of the covered individual Defendants, is liable to the Plaintiff for the wrongdoing of the covered individual Defendants.

106. The acts of the individual Defendants constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

107. The acts of the individual Defendants caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

108. The individual Defendants, while in uniform, unlawfully seized and assaulted Plaintiff and searched him.

109. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

EIGHTEENTH CLAIM

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

110. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

111. The individual Defendants are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

112. The City of New York, as the employer of the individual Defendants, is liable to Plaintiff for the wrongdoing of the covered individual Defendants.

113. The acts of the individual Defendants constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

114. The individual Defendants had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

115. The individual Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and

seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

116. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

117. By reason of the acts and omissions by the individual Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

NINETEENTH CLAIM

Violations of Right to Record under Civil Rights Law 79-P & N.Y.C. ADMIN. CODE § 14-189

118. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

119. Defendants violated Plaintiff's right to record and are liable to Plaintiff under Civil Rights Law 79-P and NYC Administrative Code § 14-189.

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTIETH CLAIM

Failure to Intervene

121. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

122. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

123. Accordingly, the Defendants who failed to intervene violated the First, Fourth, Fifth, Sixth and Fourteenth Amendments.

124. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff Oren Levy demands that judgment, compensatory, exemplary and punitive, in an amount exceeding jurisdictional limits of all lower Courts be entered against Defendants on all counts, along with reasonable attorney's fees and costs.

Dated: May 3, 2023
New York, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK,

By: _____


Gabriel P. Harvis, Esq.
80 Pine Street, 38th Floor
New York, New York 10005
(P)(212) 532-1116
(F)(212) 532-1176

Attorneys for Plaintiff

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS:
COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and a partner of the law firm of Elefterakis, Elefterakis, & Panek, attorneys of record for the Plaintiff herein, affirms:

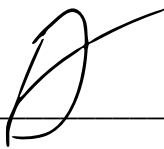
That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, she believes them to be true to the best of his knowledge.

That affiant's sources of information are investigation and files maintained in your affiant's law office.

That this verification is made by your affiant due to the fact that Plaintiff does not presently reside within the county in which your affiant maintains his law office or is presently outside the county in which your affiant maintains his law office or is presently located.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: New York, New York
May 3, 2023



Gabriel P. Harvis, Esq.